STANDARD OPERATING PROCEDURE			G-6213
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **06/02/21**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES NRS 28-1412			
SUBJECT OFF-DUTY HANDGUNS	CROSS REFERENCE G-6100 USE OF FORCE G-8300 FIREARMS TRAINING AND QUALIFICATION			

I. Purpose:

The purpose of this policy is to establish the guidelines for carrying and using handguns while off-duty and not functioning in a law enforcement capacity. It is understood that an off-duty deputy could be placed in a situation at any time where he or she may have to take law enforcement action. This policy addresses a deputy who is on "personal time" and not "paid time".

II. Policy:

Sarpy County Sheriff's Office personnel are authorized to carry and use only those firearms that conform to the specifications and requirements set forth in policy. Rules pertaining to the use of firearms are contained in G-6100 Use of Force and in each authorized weapon policy. The authority to carry and use firearms for sworn personnel in the performance of duty is established in NRS 28-1412. No employee shall carry or use any firearm he or she is not authorized to carry or use nor shall any employee carry or use any firearm he or she is not trained to use.

Deputies are permitted, but not required, to carry a handgun when off duty. A deputy who elects not to carry a handgun off duty shall not be subject to disciplinary action if an occasion should arise in which he or she could have taken law enforcement action if he or she had been armed. Deputies may carry either an approved duty handgun or other approved handgun while off duty. Deputies who elect to carry a handgun off-duty, in plain clothes, and in public shall carry the weapon in the most concealable manner possible.

III. Procedures:

A. Off-Duty Handgun Requirements:

1. **Brand:** Off-duty handguns may be of any brand.

2. **Capacity:** The handgun may be a revolver or semi-automatic pistol with an ammunition capacity of no less than five (5) rounds.

3. **Weapon Request Form:** Any deputy requesting to carry a new weapon must fill out a Weapon Request form. This form will detail the review, inspection, approval, and registration process.

4. **Qualification:** The deputy shall complete a handgun qualification course monitored by a certified firearms instructor with a minimum qualifying score of 80% prior to carrying any off-duty handgun. Deputies must also maintain a minimum qualifying score of 80% on all required handgun ~~training~~ qualification courses (see G-8300 Firearms Training and Qualification).

B. **Off-duty Handgun Carry:** Deputies may, but are not required to, carry an off-duty handgun. If carried, deputies shall adhere to the following guidelines:

1. Deputies carrying an off-duty handgun shall carry their badge and Sheriff's Office photo identification on their person.

2. Deputies shall comply with all local laws pertaining to the possession of firearms when off-duty and outside the jurisdiction of Sarpy County.

3. Deputies electing to carry an off-duty handgun shall not ingest any alcoholic beverage or medication that could hinder their judgment or physical abilities.

4. While carrying an off-duty handgun, deputies shall not frequent establishments or occasions where alcohol sales or use is the primary source of entertainment.

C. **Off-duty Handgun Accessories:** No accessories may be added to, or modifications made to any off-duty handgun without approval in writing from the deputy's division commander and the Sheriff.

1. Magazines shall be original factory equipment only.

2. Magazines must conform to the listed capacity for the specific weapon.